

AGENT AGREEMENT

THIS **AGENT AGREEMENT** sets forth the terms of one or more separate agreements (each, an "Agreement"), between the Agent, the Recommending Agent, and one or more of the following insurance companies:

American-Amicable Life Insurance Company of Texas
IA American Life Insurance Company
Occidental Life Insurance Company of North Carolina
Pioneer American Insurance Company
Pioneer Security Life Insurance Company

(each, individually referred to as "we", "us", or "Company"). If Agent is issued an agent number by more than one Company, Agent acknowledges and agrees that this document sets forth a separate and distinct Agreement between Agent and each Company with which Agent has been issued an agent number(s). The rights, obligations, and responsibilities between Agent and one Company are separate and distinct from the rights, obligations, and responsibilities between Agent and any other Company with which Agent is appointed. No Company will have responsibility or liability for the acts or omissions of any other Company with which Agent is appointed under an Agreement.

SECTION 1 – APPOINTMENT, AUTHORITY, AND RESPONSIBILITY

1.1 Appointment and Authorization. Company hereby appoints Agent to represent Company in the sale of those insurance policies ("Policy" or "Policies") listed on the Commission Schedules as they may be amended from time to time. Company retains the right to appoint other agents in the same territory as Agent. Agent is authorized to solicit and supervise the solicitation and procurement of Policy applications through sub-agents, recruited and recommended to Company by Agent, who shall execute a separate agent agreement with Company and be the responsibility of the Agent (collectively, the recruited sub-agents shall be referred to herein as "Recruited Agents"), to forward Policy applications to Company for approval or rejection, to collect premiums, and to deliver policies, all pursuant to Company guidelines. The licensing and appointment of Recruited Agents is described more fully in Section 2. The Company retains the right to modify Agent's hierarchy, should the Company deem it in the best interest of Agent and/or Company. Notice of any change may be provided upon request to Agent in writing, which may include email.

1.2 Independent Contractor. Agent is an independent contractor of Company. Nothing contained in this Agreement is to be construed to create the relationship of employer and employee, partnership, or joint venture

between Company and Agent. Agent may exercise its own judgment as to the time and manner in which it performs the services required to be performed under this Agreement. Company may, from time to time, prescribe rules and regulations concerning the conduct of the business covered by this Agreement which do not interfere with such freedom of action. Neither Agent nor its Recruited Agents shall have authority, other than that expressly granted herein, and no forbearance or neglect on the part of Company shall be construed to waive any of the terms of the Agreement or to imply the existence of any authority not expressly given. Neither Agent nor its Recruited Agents are authorized to:

- a. make, alter, amend, waive, extend or discharge any Policy or Policy rates, conditions, or provisions;
- b. waive or extend the time of payment of any premium due under any Policy;
- c. waive any breach, or proposed violation, or misrepresentation on the part of any insured or proposed insured;
- d. bind or obligate Company to any liability except as expressly provided herein;
- e. use any advertising, lead generation or sales materials without prior written consent of Company;
- f. make any endorsement or attach any instrument by way of illustration or otherwise to the Policies of Company;
- g. receive any moneys due, or to become due, to Company except on receipt signed by the President or Secretary of Company, without first obtaining from Company permission in writing to do so; or
- h. incur any indebtedness in the name or on behalf of Company.

1.3 Right to Modify. Company shall have the right at any time to modify or cease to issue any Policy or Policies, or to withdraw from any territory.

SECTION 2 – RECRUITING AND COMPLIANCE

2.1 Recruiting and Recommendation. Agent may recruit and recommend qualified persons or entities for appointment as Recruited Agents to solicit Policy applications and shall manage, supervise, and train such Recruited Agents. Company may appoint such Recruited Agents in its sole discretion and retains the right to refuse to appoint any person or entity as its agent and may, without notice and in its sole discretion or upon the advice of Recommending Agent, terminate the Agent Agreement of any Recruited Agent. From time to time, we may prescribe rules regarding the transfer of Recruited Agents.

2.2 Compliance with Laws and Regulations. The Company

may, from time to time, notify Agent of Company rules and guidelines, Company rate books, Company compliance manuals, or federal, state, or local laws or governmental regulations (collectively, "Laws and Regulations") which may be applicable to Agent's activities or the activities of Recruited Agents. Agent agrees to promptly communicate this information to its employees and Recruited Agents, as appropriate or as requested by Company. Agent is responsible for its employees' and Recruited Agents' compliance with all Laws and Regulations, regardless of whether Company provided notice. Agent shall pay all federal, state, and other governmental taxes and license fees levied against Agent or its Recruited Agents by the laws of any government authority in jurisdictions where Agent does business. Agent shall pay all expenses which it incurs in the performance of this Agreement.

2.3 Complaints or Litigation Arising from Alleged Violation of Laws and Regulations.

Agent shall be liable for any and all costs associated with any liability, loss, cost, damages, or suit brought against Company resulting from or in connection with alleged violations of federal or state laws and regulations by Agent, Agent's employees, or Recruited Agents.

SECTION 3 – PRIVACY

Agent shall hold in strictest confidence all nonpublic personal financial information or nonpublic personal health information related to any insured or policyholder or to any consumer or customer (as such terms are defined under applicable state or federal privacy laws), whether or not such information was obtained by Agent in the performance of Agent's responsibilities under this Agreement. Agent shall not disclose or use such information except as necessary to carry out Agent's responsibilities under this Agreement or as otherwise required under applicable state or federal law. Agent shall comply with Company's Privacy Policy as amended from time to time and any privacy rules or training provided by Company. This provision survives termination of this Agreement.

SECTION 4 – COMPENSATION

4.1 Agent Compensation Generally. Company shall compensate Agent in accordance with the Commission Schedules (as amended from time to time) for the products indicated on such Commission Schedules, for premiums received, accepted and retained by Company on applications written by Agent and its Recruited Agents. Commission Schedules assigned to the Agent will be available in the agent portal. As it pertains to the product sold, if Company refunds premium, returns policy values, waives surrender charges on any Policies for any reason, or pays a death claim during the first Policy year, then no commissions maybe payable with respect to said premiums and any commissions previously paid maybe returned to us. Company reserves the right to further define and restrict

Agent compensation pursuant to the terms of the Commission Schedule for any given product.

4.2 Compensation of Recruited Agents. Compensation due to Recruited Agents shall be deducted from the compensation paid to Agent and shall be paid directly to Recruited Agents. Agent shall be responsible for any debt remaining in default of Recruited Agents, this includes any debt incurred by any downline of Recruited Agents. Such remaining debt may be deducted from compensation due to Agent. Agent shall indemnify and hold Company harmless from any liability, loss, cost, or expense, including attorney's fees, incurred by Company resulting from or in connection with any claim or action brought by or against Agent or any Recruited Agents with respect to payment or nonpayment of compensation.

4.3 Changes in Commission Schedules. Company may, at the discretion of Company or Recommending Agent, modify Commission Schedules and change the compensation provided herein with respect to Policies issued for new business applications signed on or after the effective date of such change. Modifications of Commission Schedules or changes in compensation, such as a change in advancing of premiums, must be submitted to Company in writing, which may include email, and become a part of the Agent Agreement.

4.4 Vesting. The right of Agent to receive all compensation on Policies sold pursuant to this Agreement shall be immediately vested in Agent. Company shall pay compensation even after termination, subject to the exceptions set forth in this Agreement.

4.5 Policy Service; Internal Replacements. If Agent is unwilling or unable to provide an acceptable level of service to any policyholder, Agent will not be entitled to continued commissions with respect to such policyholder and Company may assign a new agent to such policyholder. Internal replacements must be approved by Company and if approved there may be a reduction or adjustment in commission payable on the new Policy.

4.6 Termination of Vested Commissions. Payment of compensation to Agent may be terminated by Company notwithstanding Section 4.4 when: (1) the total payable in the preceding calendar year is less than One Thousand Dollars (\$1,000); or (2) this Agreement has been terminated for reasons set forth in Section 7.2(f); or (3) Agent or any of its Recruited Agents does any act which would result in termination pursuant to Section 7.2(f) regardless of whether this Agreement has already been terminated.

4.7 Financial Responsibility for Recruited Agents. Agent shall assume responsibility for the financial integrity of all Recruited Agents, including but not limited to all indebtedness of Recruited Agents, including any downline of Recruited Agents, to Company, notwithstanding any laws or regulations that may contradict this obligation. Agent shall indemnify Company and Agent's account shall be charged the full amount of all such indebtedness that may

have been incurred and unpaid by any of the Agent's Recruited Agents, or downline of the Recruited Agents.

SECTION 5 – INDEBTEDNESS

5.1 Debtor-Creditor Relationship. Any of the following transactions between Company and Agent shall be a loan and create a debtor-creditor relationship between Agent and Company:

- a. any commission paid on a Policy solicited or sold by Agent or any of its Recruited Agents for which Company has paid a commission, in the event that a refund or return of any premium results in a chargeback of such commissions previously paid;
- b. any advance made by Company to Agent against future compensation for any reason; or,
- c. any other loan or debt between Company and Agent.

5.2 First Lien and Right of Offset. The indebtedness created by any of the transactions of Section 5.1 above is due and payable on demand and shall create a first lien on any current or future compensation due to Agent. Company retains the right to offset such indebtedness against any amounts otherwise due to Agent. Any indebtedness not paid upon demand shall confer upon Company the authority and power to seek all available legal and equitable remedies against Agent to obtain repayment of the indebtedness. Agent shall be responsible for any debt remaining in default of Recruited Agents, and any unpaid indebtedness may be deducted from compensation due to Agent (all as provided in this Agreement).

SECTION 6 – ASSIGNMENT

This Agreement shall not be assigned or otherwise transferred by Agent without the prior written approval of Company. Company, in its sole discretion, may decline to accept an assignment of business. Any assignee shall then be bound by the terms of this Agreement.

SECTION 7 – TERMINATION

7.1 Without Cause. This Agreement shall remain in full force and effect until terminated upon thirty (30) days' prior written notice given by any party to the other except as set forth in section 7.2. Termination of this Agreement shall not affect any duties, obligations, or liabilities incurred prior to termination except as otherwise provided herein. Within thirty (30) days of termination of the Agreement, Agent shall return to Company all Company materials and shall indemnify Company for any cost incurred to secure Company's property should Agent fail to honor Company's demand for return thereof.

7.2 Immediate Termination. This Agreement may be terminated immediately, without notice in the event of and as of the date of the occurrence of:

- a. At the direction of an officer of the Company.

- b. bankruptcy, insolvency, receivership, liquidation, or assignment for the benefit of creditors by either party;
- c. cancellation, suspension, pending investigation or revocation of Agent's insurance license by any governmental or regulatory authority having jurisdiction;
- d. death or dissolution of Agent;
- e. IRS or other tax levies;
- f. failure to secure Company any new paid premium or have business in house pending review during any period of 180 days; or,
- g. Agent's action or failure to act, or breach of this Agreement, by:
 1. wrongful withholding of funds belonging to an applicant or Company for a Policy or Policies;
 2. engaging in systematic inducement of insured(s) to replace, lapse, relinquish, or surrender a Policy or Policies;
 3. committing any illegal, dishonest, or fraudulent acts in connection with any business of Company;
 4. failure to comply with applicable Laws and Regulations;
 5. any default in the performance of any material term or condition of this Agreement;
 6. conduct so as to injure Company's standing or good name in the community or elsewhere; or
 7. any other conduct that rises to the level of termination for cause that requires reporting to a governmental agency.

SECTION 8 – BOOKS, ACCOUNTS, AND RECORDS

All books, accounts, correspondence, and other records of Agent relating to business transacted pursuant to this Agreement shall, at all times, be open to inspection by Company or its designated representatives and Company may make copies thereof before or after the termination of this Agreement.

SECTION 9 – AMENDMENT

This Agreement may not be amended or modified without the express written approval of an authorized officer of Company, Recommending Agent, and Agent.

SECTION 10 – INDEMNIFICATION

Agent shall indemnify and hold Company harmless from any liability, loss, cost or suit brought against Company resulting from or in connection with any unauthorized acts, any error or omission, or any breach of any of the provisions of this Agreement by Agent, Agent's employees, or Recruited Agents.

SECTION 11 – MISCELLANEOUS

11.1 Anti-Money Laundering Compliance. Agent must comply with all applicable anti-money laundering (AML) laws, rules, regulations, and government guidance. These include requirements to identify suspicious activity, verify customer identity and conduct customer due diligence. In addition to applicable laws, Company has implemented an AML program which includes requirements for reporting suspicious activity and providing AML training to the Company's insurance distributors. Agent agrees to comply with Company's AML policies and reporting and training requirements.

11.2 Electronic Imaging and Transmission. Agent agrees to comply with Company's requirements for electronic imaging and transmission of documents.

11.3 Suitability. Agent agrees to comply with all applicable laws, regulations and Company policies pertaining to requirements that products be suitable for the consumer, including without limitation the suitability of any annuity or life insurance product for a consumer.

11.4 Remedies at Law or Equity. Should Agent or Agent's Recruited Agents engage, before or after termination of this Agreement, in any act prohibited by Section 7.2(f), it may result in irreparable injury to Company for which there may be no adequate remedy at law and Agent hereby agrees that Company may obtain injunctive relief.

11.5 Severability; Waiver. If any provision of this Agreement is deemed void, illegal, or unenforceable, the validity of the remaining portions shall not be affected thereby. Any waiver of the rights of Company under this Agreement on one occasion shall not constitute a continuing waiver of any such right or any other rights of the Company under this Agreement.

11.6 Disputes, Complaints, Claims and Other Matters. All parties agree to cooperate fully with each other in the resolution of all matters arising out of the business of this Agreement. Agent agrees to notify Company promptly of any complaint, claim or dispute involving an applicant, Policy, policyholder, or agent. Agent shall notify Company immediately upon receipt of any subpoena, summons or other notice of suit or any regulatory authority inquiry with respect to any of the transactions contemplated by this Agreement (including Agent's disqualification to sell insurance) and shall include with such notice a copy of any documents received. Agent will not litigate any dispute with an applicant or policyholder, on any matter involving the Company or relating to the business of this Agreement, without Company's prior written consent. Company may settle any claim against us or Agent arising out of the business of this Agreement, with or without Agent's consent.

11.7 Venue; Governing Law. This Agreement is performable in, and all sums due from one party to the other are payable in McLennan County, Texas, and all legal proceedings in regard hereto shall be instituted in

McLennan County, Texas, and all parties hereto expressly waive any privileges they may have as to venue contrary to this provision. It is further expressly agreed that all provisions of this Agreement and any controversy that may arise thereunder shall be construed according to the laws of the State of Texas, without giving effect to principles of conflicts of laws.

11.8 Emphasis and Headings. Certain provisions of this Agreement are emphasized for the convenience of the reader. Nevertheless, all provisions apply equally. The headings and titles of paragraphs contained in this Agreement are for convenience only and have no effect upon the construction or interpretation of any part of this Agreement.

11.9 Death of Agent; Payment. Compensation that is accrued following the death of an agent shall be paid to the Agent's estate or executor as determined by the Company.

SECTION 12 – COMPLETELY INTEGRATED AGREEMENT

This Agreement along with each and all Commission Schedules, appointment paperwork for each Company, and any other supplemental Addendums, contains an entire and complete separate Agreement between Agent and each Company, and supersedes any prior or contemporaneous agreements, promises, or representations with respect to such matters.

SECTION 13 – SOCIAL SECURITY/TAXPAYER IDENTIFICATION NUMBER CERTIFICATION

13.1 I, _____, _____
certify that _____ is my
correct taxpayer identification number or social security
number.

13.2 I further certify that I am not subject to backup withholding either because I have not been notified by the IRA that I am subject of backup withholding as a result of a failure to report all interest or dividends, or the IRS has notified me that I am no longer subject to backup withholding.

NOTE: If you have been notified by the IRS that you are subject to backup withholding, cross out section 13.2 and attach a written explanation.

GENERAL AUTHORIZATION AND RELEASE

I hereby authorize Company to contact any past employer, business associate, business partner, military service, court, law enforcement agent, insurance company, financial institution, or any other person or entity, to obtain information about my background, employment, schooling, business activities and experience, character, criminal record, or financial status.

I hereby authorize any of the above persons, institutions, or entities to provide the above information to Company and waive and release any claims I may have related to providing such information. I also authorize them to rely on a photocopy or facsimile copy of this authorization.

I also acknowledge that Company may participate in programs which provide background and financial information on insurance agents, including debit balances including without limitation Vector One. I authorize Company to obtain information from these programs and to share any information obtained from other sources with these programs. I also waive and release any claims I may have related to the sharing of such information by Company or the programs in which Company participates.

This authorization is continuing and remains in effect until revoked by me in writing delivered to an officer of Company. If this authorization is revoked by me while I am an active agent of Company, Company may immediately terminate this Agreement.

I hereby certify that any representations and warranties made in this Agreement are true. I understand that if any representation or warranty given in this Agreement is found to be incorrect or incomplete, it may be grounds for Company to decline my application for appointment or immediate termination at the sole discretion of Company.

By signing below, I certify that: I have not been convicted of a felony involving theft, dishonesty or breach of trust, am not in violation of the Violent Crime Control and Law Enforcement Act of 1994 (the "1994 Crime Act") if the Company enters into this Agreement with me, and that I will immediately advise the Company of any situation that would cause me to be in violation of the 1994 Crime Act. I agree to foster high standards of ethical behavior and to adhere to the Company's policies and procedures concerning the sale of its insurance products. I acknowledge that I have read and understand this Agreement, and agree to be bound by its terms. I further acknowledge that this Agreement is deemed accepted and executed by the Company on the date an agent number is assigned.

Please complete either section 1 or section 2.

1. AGENT SIGNATURE	
_____	_____
Printed Name	
_____	_____
Signature	
_____	_____
Date	

2. AGENT PERSONAL GUARANTEE (If a Business Entity, the following must be completed)		
The undersigned individual hereby personally guarantees the full and faithful performance of all duties, obligations, and repayment of indebtedness of Agent pursuant to the above Agreement.		
_____	_____	
Printed Name	Signature	
_____	_____	_____
Date of Birth	Social Security #	Date

RECOMMENDING AGENT (if applicable)	
_____	_____
Printed Name	Signature
_____	_____
Agent Number	